CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
March 10, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:03 p.m. on Wednesday, March 10, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised that a request was made to amend the agenda to include the following items:

Note: The following first reading ordinance will replace agenda item 15-10 under the consent agenda. Agenda item 15-10 is hereby deleted from the agenda.

Attorney Geller noted an error in the sponsor and stated that the sponsor of the ordinance is Commissioner Johnson.

12-1: AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND SECTION 2-326 OF THE CITY CODE TO CHANGE THE AMOUNT THE CITY MANAGER MAY SPEND WITHOUT THE

CITY COMMISSION'S APPROVAL; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above item would be read under agenda item 14-2.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above ordinance under agenda item 14-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE COST ASSOCIATED WITH THE EMERGENCY RELOCATION OF TENANTS LIVING AT 2170 WASHINGTON AVENUE DUE TO FIRE DISASTER, IN AN AMOUNT NOT TO EXCEED $20,000.00; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Patterson deferred agenda item 15-2 to the next regular meeting because the item had not been brought to the Commission at a workshop or executive session setting and that needs to be done prior to them voting on the union contract.

Commissioner Johnson pulled item 15-1 and 15-8; Commissioner Tydus pulled item 15-9; and Vice Mayor Taylor pulled item 15-7 from the consent agenda to be considered separately.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Chief Harvin of Miami-Dade Fire Rescue came forward to address any comments and/or concerns.

Commissioner Johnson asked, what is the procedure to get employees CPR training?

Chief Harvin advised that he would go through the Public Education Department to obtain that information and forward it.

Commissioner Holmes advised that the city had trained employees in the past and that was coordinated through the Human Resources Department.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – February 24, 2010

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of February 24, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for County Commissioner Barbara Jordan, District 1, came forward and stated that he is working on the request from the Commission to provide the city with technical support. He requested that the city send an email stating in detail exactly what kind of technical support is needed.

10. PUBLIC PRESENTATION:

1. **Beverly Washington, Vice President**
Black Global Bikers Association (BGBA)
re: special presentation to the city

Beverly Washington, Vice President and Mark Brown, President of Black Global Bikers Association came forward and presented the city with a plague for being a sponsor of the 4th Annual Special Needs Motorcycle Charity Toy Run held on December 13, 2009 for special needs children.

2. **John Riley**
re: Welfare of the City

John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and encouraged the Commission to conduct a more intensive investigation when it comes to what is being proposed regarding the red light camera program. He expressed his concerns relating to the Red Light Camera program.

Mayor Kelley stated that currently there is litigation involved with the Red Light Cameras, as well as challenges in the legislative bill, and the Commission is well aware of the impact.

3. **Alvin Burke**
re: Welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and expressed his concerns relating to the approval of the Sherbondy Park Project during the Special Meeting held on Monday, March 1, 2010.

As a member of the City of Opa-locka Planning Council he stated that the city's charter does not provide for a specific place in the city for schools, and one of the Planning Council items on the last meeting's agenda had to be deferred for that reason.

Mayor Kelley directed the City Manager and City Attorney to provide the Commission with a report on the issue Mr. Burke is referencing with regards to schools.

10a. CITIZENS' FORUM:

1. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and informed them of the attempt to close down the Veteran's Association in Magnolia North. He urged the Commission to contact the Veteran's Association to see what can be down to assist.

He continued by saying that he would like to see additional picnic benches in the lakefront area of Ingram Park.

He further commended the Commission for selecting Choice Environmental Services, Inc. as the city's provider for residential solid waste collection.

2. Humberto Perez, Director of Ecological Paper Recycling, Inc., 12847 NW 45th Avenue, Opa-locka, Florida came forward and introduced his new business in Opa-locka. He continued by extending his services of document destruction & recycling to the city.

Commissioner Johnson directed the City Manager to make sure all city departments receive the recycling containers.

3. Winston Bisnath of Caribbean Auto Paint & Body of 13970 NW 22nd Avenue, Opa-locka, Florida, appeared before the City Commission to express his concerns relating to lack of enforcement relating to the city's code prohibiting the storage and working on vehicles in the parking lot. Although Code Enforcement has visited his shop about these issues, he hasn't seen the same enforcement for the neighboring auto body shops.

He advised that he'd called Code Enforcement for the past six months and he was told to allow the customer to drop the handicap person in the parking lot then go find a parking space.

Mayor Kelley thanked the Mr. Bisnath for bringing this issue to the attention of the Commission. He further directed the City Manager to have staff speak to Mr. Bisnath and provide a follow up written report.

4. Jose Vasquez, Assistant Director of Miami-Dade College came forward and informed the Commission of several projects being developed in conjunction with the city. After speaking with Mr. Spanner in terms of how the architectural students could contribute to the city, they are in the process of reviewing and updating the city design guideline. Also, he is collaborating with the City Manager's Office on the grants through the National Park Service for the Save America Treasurer's grant. In addition to that, they would be pursuing another project which is Habitat for Humanity.

Since Mr. Vazquez met with staff, Mayor Kelley suggested that the City Manager provide a report to the Commission.

5. Sonya Mitchell appeared before the City Commission relating to an item before the Planning Council for a Charter School. Currently, she said there is a school on the property. She petitioned the Commission to move on the issue expeditiously so that they would be able to proceed with the school which would be a $10.8 million dollar project.

Mayor Kelley stated that the City Attorney is aware of the issue and he would be working to get the Commission up to speed in terms of what needs to be done.

6. John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and spoke about an issue he went through several years ago in which the City Manager wanted to zone a school public on NW 135th Street. The Florida Statutes does not require zoning for schools; schools go in any zone except for industrial zones and that's why the city doesn't have it in the code because it is not required.

Mayor Kelley informed Mr. Riley that the issue would be addressed because both the City Attorney and City Manager are listening to the comments regarding this matter.

7. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that with regards to the issue relating to the Veteran's Association in Magnolia North, the problem is that a lot of the older men who kept it opened have since passed away. There are not enough members in that location to keep the organization going.

In terms of the issue with the schools, the Planning Council was advised by the land use attorney that whatever they did with the school in question would be done illegally until the issue came before the Commission.

Mayor Kelley stated that he would follow up on the issue with the Veterans Association. In addition to that, the city will work on resolving the issue with the school.

11. ACTION ITEMS (items from consent agenda pull list):

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ENTER INTO A PARTNERSHIP BETWEEN THE CITY OF OPA-LOCKA, FLORIDA, AND NATHAN B. YOUNG ELEMENTARY SCHOOL TO SUPPORT THE BUTTERFLY GARDEN PROJECT; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson stated for the record that she would pay the $1 per year for the Butterfly Garden Project for 50 years. Additionally, she requested a receipt and that this is noted in the school records so that 50 years from now the project would still be around. She said she would make sure the personal check from her husband and her gets to the City Clerk to be forwarded to Finance.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ADOPT THE "PARTNERSHIP-IN-EDUCATION COMPACT" BETWEEN THE CITY OF OPA-LOCKA AND THE MIAMI-DADE PUBLIC SCHOOLS TO ESTABLISH THROUGH COLLABORATIVE EFFORT A PACT THAT WILL ENCOMPASS AND FOCUS ON EDUCATIONAL PROGRAMS,

COMMUNITY INVOLVEMENT, SCHOOL SAFETY ISSUES, ASSIST IN ADMINISTRATIVE ISSUES AND COLLABORATE ON LEGISLATIVE AGENDA IN SUPPORT OF EDUCATION; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Vice Mayor Taylor asked for clarification on the Partnership in Education Compact.

Commissioner Johnson stated to the City Attorney that the resolution should have been an amendment to the original resolution adopted in 2007. Since then, she has enhanced it with what's already on the books in other cities. Once approved, she would be taking the educational compact to Miami-Dade County Public Schools for their support and endorsement of the program.

Vice Mayor Taylor asked, is there a Partnership in Education Compact package?

Commissioner Johnson stated that there is a package; however, it is not included as a part of the resolution.

Attorney Geller said he would provide the copies of the package to the Commission.

Mayor Kelley commended Commissioner Johnson on her work of getting the educational compact together because it is needed to address the needs in the community. In looking at other cities, Commissioner Johnson came up with the draft in terms of what the city needs to enhance education.

Commissioner Johnson gave credit to Starex Smith for his assistance with the educational compact.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING AND DIRECTING THE CITY MANAGER TO CREATE AN EMPLOYEE INCENTIVE DISCOUNT PROGRAM; PROVIDING FOR RECITALS;PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson explained that the above resolution would provide an employee incentive discount program to receiving discounts at local businesses.

Vice Mayor Taylor asked, what would the businesses get out of this program?

Commissioner Johnson stated that the businesses will get the business but they will not receive anything from the city. She said she would be working with the businesses on the discount program.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SET COMPENSATION FOR THE INTERIM CITY ATTORNEY; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Of concern to Commissioner Tydus was the lack of clarity in Section 2 of the resolution which states that the compensation would be at the same monthly payment paid to the previous City Attorney. Although she didn't have any problem with the payment, the Commission should have discussion as to whether the city would be receiving the same level of services as far as daily representation in the office during office hours.

Commissioner Johnson stated that there had not been anything she can think of that has not been done; but to have someone work for the city for two months and the Commission not come up with a compensation, she thought they should do due diligence to make sure the individual is paid. She said she could say that she's seen him more often than some of the others.

Commissioner Tydus stated that the compensation is fine; however, the only way she could support the resolution is if the level of services would be the same and that did include daily representation in the office from 8:00 a.m. – 5:00 p.m. which was the discussion and concern of this Commission from time to time throughout the tenure of the former City Attorney. There was not only daily representation by one attorney but on some occasion two attorneys depending on the needs. Also, she found it note worthy that

the litigation services which was a topic of concern and discussion as it related to the payment of the former City Attorney, is mentioned in the resolution to be paid separate from the monthly allotment.

Commissioner Johnson explained that with the former City Attorney she thought the litigation was a part of the contract only to find out that it was not. In looking at the same type of service being provided that is not lacking from what the city had, the litigation invoices with the former City Attorney is the reason why the Commission had to come back a couple of meetings ago to pay the difference.

Commissioner Tydus stated that the Commission received a well defined report of what the payment was for and she had no problem with compensation being separate from the monthly payment. However, she does have a problem with equity and how the Commission spent weeks upon meetings in discussion and conflict with the payment for the former City Attorney as it related to litigation but there seems to be no concern with the current attorney.

She suggested that the Commission take into consideration, should the city pay the same monthly payment, then they should have the same level of service and representation in the office.

Commissioner Johnson stated to Attorney Geller that it is not her understanding that his services would be lacking what the city is due. She was of the opinion that after working for the city for three (3) months, Attorney Geller should have been paid for his services.

Vice Mayor Taylor asked whether the City Attorney had not been paid since working for the city as Interim City Attorney.

Attorney Geller explained that the previous City Attorney was paid the monthly stipend through December so he did bill for that part month since it was already paid. Therefore, the months of January, February plus to date has not been paid based on the Commission adopting the compensation.

Vice Mayor Taylor asked, if this resolution wasn't presented to the Commission, was anybody going to say anything?

Mayor Kelley stated that he had spoken to Mr. Geller but there was so much going on with the previous attorney, he asked Mr. Geller to hold off so the city could clear out all pending issues. He said he was going to put forth some legislation but Commissioner Johnson has since put forth the legislation. As they are aware, there was discussion in terms of litigation compensation for the previous City Attorney and until that was cleared up, he asked the City Attorney to hold off which he graciously did agree to do.

Vice Mayor Taylor stated that she would support this resolution to pay Mr. Geller because she doesn't know any attorney that litigation is sucked into the monthly payment. The other issue is the quality of service and although she is not so much for a person who has to be in the office from 9:00 a.m. – 5:00 p.m. especially in his profession she wants the City Attorney to represent the city well.

Commissioner Tydus stated that Mr. Geller does represent a firm but the former City Attorney represented a firm as well and she was not the one in the office on a daily basis but the office at City Hall was always staffed with an attorney from her firm.

Commissioner Holmes recalled that A. Quinn Jones, III, was the only attorney who sat in the office from 8:00 a.m. – 5:00 p.m. If anyone knows how often the previous attorney was in her office, he would know because he was in his office everyday. He can say that there had been many days that no one was in the City Attorney's Office. He said that Mr. Geller has been in the office at City Hall more often than the previous attorney.

He continued by saying that the City Commission passed a resolution to hire an in-house attorney and when that is done then the Commission can establish the time and compensation, including litigation, in one package. He asked, when is the city going to put out for a search for an in-house attorney? He asked whether Mr. Geller would be willing to accept the position of in-house attorney for the city.

He further stated that he would support Mr. Geller because he is aware of the good work he is doing and he has represented the city in the past.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE COST ASSOCIATED WITH THE EMERGENCY RELOCATION OF TENENTS LIVING AT 2170 WASHINGTON AVENUE DUE TO FIRE DISASTER IN AN AMOUNT NOT TO EXCEED TWENTY THOUSAND DOLLARS ($20,000.00); PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes

Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE VACATION OF THE RIGHT-OF-WAY OF A CITY OWNED PARCEL LOCATED AT THE EAST END OF THE PROPERTY AT 160 ALI-BABA AVENUE (VETERANS WAY), WHICH IS EAST OF THE INTERSECTION OF VETERENS WAY AND DOUGLAS ROAD; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND SECTION 2-316 OF THE CITY CODE TO CHANGE THE AMOUNT THE CITY MANAGER MAY SPEND WITHOUT THE CITY COMMISSION APPROVAL; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AMEND THE CITY COMMISSION AGENDA RULES AND PROCEDURE, SECTION 2-45 TO CREATE A NEW NUMBER 10 "REPORT FROM MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE VACATION OF ONE BLOCK OF DUNAD AVENUE FROM BANU STREET TO PERVIZ AVENUE FOR THE EXPANSION OF SHERBONDY PARK; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 2, ARTICLE IV, BY CREATING DIVISION 8 "DRUG FREE WORKPLACE" BY PROVIDING REGULATIONS CREATING A DRUG FREE WORKPLACE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by D.J.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

Vice Mayor Taylor asked whether all the kinks were cleaned out of the ordinance?

Attorney Geller stated that the Commission will adopt the ordinance as is and then he would make some further additions to it and revise it.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E STUDIO 6530C HIGH SPEED COLOR COPIER FOR THE FINANCE DEPARTMENT FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 17-513440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

Mayor Kelley stated that previously there was concern relating to needing the copiers in the various areas and discussion about consolidating. He assumed since the ordinances for copiers are on the agenda that they are needed in the various locations.

Manager Patterson advised that the copiers are needed and the last discussion he was directed to look at all of the copiers in the departments at Town Center. He said he is looking at combining as many units as possible to get away from every department having their own copier.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Out of room
Mayor Kelley	Yes

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 5520C HIGH SPEED COLOR COPIER FOR THE POLICE DEPARTMENT, PATROL AREA FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 19-524440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

6. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 4520C HIGH SPEED COLOR COPIER FOR THE POLICE DEPARTMENT, ADMINISTRATION AREA FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 19-524440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 6530C HIGH SPEED COLOR COPIER FOR THE OFFICE OF THE CITY MANAGER FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 17-513440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on February 10, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes

Mayor Kelley Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER TO PAY FOR EMERGENCY REPAIRS TO THE CLAMP SHELL TRUCK IN THE AMOUNT OF FOUR THOUSAND FOUR HUNDRED AND TWENTY FOUR DOLLARS AND EIGHTY SIX CENTS ($4,424.86) TO ATLANTIC TRUCK CENTER PAYABLE FROM ACCOUNT NO. 64-53346; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO APPLY FOR A BROADBAND TECHNOLOGY OPPORTUNITY PROGRAM GRANT FROM THE DEPARTMENT OF COMMERCE, NATIONAL TELE COMMUNICATIONS AND INFORMATION ADMINISTRATION, REQUESTING FUNDS IN AN AMOUNT UP TO FIVE HUNDRED THOUSAND DOLLARS ($500,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING AN EFFECTIVE DATE. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING THE FLORIDA LEGISLATURE TO PROVIDE EACH REGION OF THE STATE, INCLUDING SOUTHEAST FLORIDA AND MIAMI-DADE COUNTY, ITS FAIR SHARE OF STATE FUNDING BASED ON WHERE REVENUE IS GENERATED; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SUPPORT A BILL FILED BY SENATOR TONY HILL FOR THE CREATION OF A STATE OF FLORIDA CIVIL RIGHTS MUSEUM; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes

Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson provided the Commission with a report on the demolition of the old water plant. He stated that he provided to the Commission a schedule of the upcoming budget and he would like to schedule meetings with them individually. Additionally, he stated that he would like to get with the Commission prior to getting back with the contract negotiations with AFSCME union and that was one of his reasons for pulling the contract so that they have an opportunity to know what is in the contract to be fully aware of what it is they are voting on.

Vice Mayor Taylor requested for a written updated report on the city's grants written for the city since September 2009 and a written update on the CRA.

Mayor Kelley stated that he was going to mention that the Commission should have a workshop on the CRA issue because he's had a chance to meet with the representative. He suggested that the City Clerk poll the Commission for their availability for a workshop reference the CRA sometime during the meeting. He recommended having the workshop 30 minutes prior to the next regular commission meeting.

Vice Mayor Taylor informed the City Manager that she was receiving telephone calls reference the list for the seniors and handicap garbage pick-up.

Manager Patterson stated that there were some changes on the pick-up date and he had the company go back to place a label on the container with the collection dates. The company is going out to anybody who is handicap and physically unable to bring out their garbage container.

With regards to the copiers, Vice Mayor Taylor asked, is the copier for Public Works scheduled to come back up as an ordinance? She said that the Public Works Department is separate from the other city departments. Now that the building official is over at the Public Works Department that means he's going to generate paperwork that needs to be copied or is it not going to be generated from the Public Works Department?

Manager Patterson stated that the building official has not indicated that he needs a copier.

Vice Mayor Taylor stated to the City Manager and City Attorney that she would like to sponsor a resolution concerning the emergency policy for the city.

Commissioner Johnson expressed her concern regarding the amount of theft of vehicles left on city premises over the weekends. She suggested that the vehicles are parked at either the Public Works Department or Police Department.

She stated that she was in receipt of an application from Corey Jones of CAA for the seniors and she would like the Office of Community Services (OCS) work with the seniors who need assistance in filling out the application.

She further stated her concern relating to the city's administration regulation 3301 which was adopted in May 2009 in terms of annual payout. According to the resolution, it appears that an employee must have at least 192 hours before they can receive an annual leave payout. Through public records, she has documentation of an employee receiving a payout in five months and when she did the math the payout should have been 40 hours but instead it was for 100 hours. She asked for an explanation as to how this occurred by Thursday, March 11, 2010. In reviewing the statement as a part of public records, there was no federal income tax taken out of the payout.

Commissioner Tydus stated that the Commission adopted over a year ago an ordinance prohibiting the sale of vendors on public street corners and she noticed that the vendors are back out.

She continued by saying that the city is suddenly being terrorized once again by stray dogs. The city had worked out a system with Miami-Dade County which was not on a consistent basis. She directed the City Manager to get with Miami-Dade County to see what could be done on a regular basis to address the stray dogs in Opa-locka.

Commissioner Holmes directed the City Manager to look at all monies in city accounts for special projects and whatever money the city is in jeopardy of losing, he suggested that a plan is initialized to do whatever can be done to spend the money in the community.

In terms of the Red Light Camera Program, he suggested that the city put a hold on the issuance of citations until the issues surrounding the program are resolved.

He further spoke about the lot on Veteran's Way owned by a citizen for many years and the city has pipes running underneath the ground. The citizen wants to sell the lot but has been unsuccessful because nothing could be constructed on the lot due to the pipes underneath. He suggested that the City Manager look into whether the city could use the lot and possibly purchase it from the owner.

Of concern to Commissioner Holmes was the fact that it was brought to his attention that the union doesn't have a president or vice president in the city, and therefore, he was glad to see the item deferred. Back in the 1990's, he sponsored the union to represent the employees of the city because people were losing their jobs. The city needs the union to represent the employees and doesn't need any city department head(s) trying to destroy the union because he would not allow that to occur.

He continued by saying that he would pass on some information regarding a citizen's high water bill so the manager could review it.

He further stated that there's so much work to be done in Opa-locka and the Commission, department heads and staff must work collectively to improve the quality of life.

Commissioner Holmes spoke about the problems with the VFW in the Triangle and suggested that the City Manager proceed with the project at Sherbondy Park since the resolution was already passed.

Mayor Kelley stated that the City Commission gave direction at the last meeting, due to the pending litigation with the red light program, that the city move slowly in order to see the impact of whatever occurs.

With regards to the list of disabled individuals who have their trash containers put out front by the company, he said that some of the individuals may have their gates locked and the City Manager must make sure that is a part of the plan as well.

In terms of the pending projects, Mayor Kelley directed that the City Manager proceed with those if there is funding available.

Manager Patterson advised that with grants the city is unable to shift monies around; therefore, he would spend what is available for the project specified.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city is paying the bills as they become approved invoices. Additionally, a cash register for the month of February and cash requirements have been provided to the Commission.

Mayor Kelley asked, is the audit field work completed?

Mr. Orji advised that the audit field work is complete and the auditors are now drafting the reports.

Commissioner Johnson requested an aging detailed report as well as bringing back all city accounts, the balance in each and the name of the bank.

16. OFFICIAL BOARD REPORTS:

1. John Riley, Chairman
City of Opa-locka Personnel Board

John Riley, Chairman of the City of Opa-locka Personnel Board came forward and stated that in the packet provides a request from the board for the Commission to convene as a board of inquiry so that the Personnel Board may present issues to the Commission for determination. The issues should be limited to the findings of the board as it pertains to appeals and investigations done by the board. The investigations consist of items pertaining to the union and Parks & Recreation Department which had recent findings but have sat dormant since then and the city Charter requires that it be adhered to. He elaborated on the issues surrounding the issue with the union.

Commissioner Tydus asked, has the Personnel Board presented corresponding minutes that include these particular items and discussion currently being addressed.

Mr. Riley stated that the Personnel Board is behind on its minutes since the transition of the last HR Director and the new HR Director.

Commissioner Tydus stated that the minutes have not been prepared, but the Commission should be receiving them soon.

Mr. Riley replied, exactly. He said some of the minutes have been prepared and he could provide the minutes available to the Commission along with final orders once they have convened themselves as a Board of Inquiry.

Commissioner Holmes said he was in agreement with some of the concerns brought up by Mr. Riley and if a Board of Inquiry is needed to resolve the issues then that needs to be occur. He directed the City Attorney, if necessary, to prepare a resolution to for the Commission to convene itself as a Board of Inquiry for this matter. He said that a lot of things have occurred with the union and the Commission as a body must look at it and do whatever is necessary to address the issue.

Mayor Kelley stated that the Commission as a whole wants the employees to be treated fairly and all of them have probably heard or had some discussion presented to them by individuals on a whole wide range of issues concerning the union; therefore, he was glad that the City Manager pulled the item. In the interim because there are so many different dynamics not just to what Mr. Riley presented to get some of those separate issues addressed so that the Commission is in the best position if they would convene as a Board of Inquiry to have all the necessary information going into that process.

17. CITY ATTORNEY'S REPORT:

Attorney Geller reported that the contractor for Sherbondy Park had submitted a draft contract and he's looked at the draft, staff had a meeting with the contractor and there were a couple of issues as changes in the contract to protect the city. He anticipated a contract for final approval at the next regular commission meeting and the final draft would be submitted to the City Clerk for the Commission to approval in order to get started with the project.

He continued by reporting that the city has now in place a Drug Free Ordinance and the city's been contacted by a company providing mobile drug testing and screening; therefore, if there is a need to have employees tested that company would be happy to provide the services.

With regards to the issue that just came up with the Board of Inquiry, he said there were a number of items Mr. Riley talked about to include straight personnel issues which the Commission has the ability to deal with in addition to a matter with Parks & Recreation. He cautioned the Commission because he and the City Manager had been speaking to the union and the union has suggested that certain activities on the parks of the city might or could give rise to unfair labor practice charges if the city is deemed to interfere unduly

with internal union matters; therefore, whether it's by Board of Inquiry or any other mechanism, the city needs to be careful because there are things that are union issues which the city cannot, despite the best of intentions, cross over into.

He further said that a lot of what Mr. Riley stated regarding the red light program is very persuasive. He spoke with a representative from the Miami-Dade County League of Cities Legal Committee that's involved on the red light issues and only one circuit judge has struck this down and this would certainly be reviewed on appeal. However, this is a matter where the city would have to exercise caution. The city has not begun collecting funds and is scheduled to have the program fully operational on April 1, 2010.

Attorney Geller commented on the schools issues by saying that his brother former Senator Steve Geller was the attorney in attendance and to say that the city is surprised there was no provision in the code is also an understatement. The comments that Mayor Riley made with regards to this issue were correct but not complete. Schools can be located anyplace and they do not require zoning but that's public schools and certainly cities have the right through zoning to regulate private schools which are not included in that Statute that says you can put a school any where. The city as a municipality will not surrender its rights to zone and have zoning regulations covering private schools because those are businesses and are not public schools. Charter Schools is a different animal than both and as a city, they have a right to regulate Charter Schools on zoning the same way they have a right to regulate private schools until someone shows different. Having the right to do so doesn't mean the city is hostile to it; what it does mean is that there would have to be a provision in the city's code. Since the Planning Council Meeting, he's been speaking with the attorney for the Charter School to try to coordinate and if it is the will of the Commission, he has received from that attorney a draft proposal which he is reviewing for a proposed revision to the city's code which would allow for private schools, charter schools, educational facilities to be located in the City of Opa-locka pursuant to the city's code under the proper circumstances.

He continued by saying that he was a little concern because the draft he received does not really have much in the way of standards about what the city would be looking for to decide when the city should approve such facility and when they may be an imposition on the neighbors. He said he would be getting back with the attorney, but they had asked since they want to open for the next school year to move quickly and he needs guidance from the Commission as to whether he would like for him to do his best to just get it on the next Planning Council agenda, or if they want to have some process to discuss this issue prior to it going back before the Planning Council, whether they want to schedule a workshop, allow him to talk individually with members of the Commission or whatever the pleasure of the Commission is. He said he understood the applicants need for speed but these are significant issues and it is proper to regulate private schools and charter schools as well through the zoning process as any other institution to protect neighbors. The issue is not about this facility but about the city's zoning code.

Mayor Kelley stated that he didn't think the Commission was oppose to the school; however, the city must make sure they have the structure and process because once they deal with the code provision it's not only for this school but for other issues that may come up. He said that the Commission is scheduled to have a CRA workshop and he's

not sure if they can include this issue or if Attorney Geller would be able to meet with the members of the Commission individually. He asked the Commission whether they wanted to schedule a workshop on this issue or meet with the attorney individually.

Vice Mayor Taylor suggested that the city not make a big issue out of this because a Charter School is a public school and they can always treat it like anyone else by a variance rather than to really get into it. She said that the Charter Schools are regulated by the public school system.

She continued by agreeing to make herself available for this issue because she understood the applicants timeframe and if the Charter School has been approved by the school board then she has to get on the fast track for recruitment and getting the school staffed. Therefore, she suggested that the city use the same system and process for a variance to deal with this issue.

Attorney Geller advised that he city must have some standards to judge the strictly zoning ends of it because Vice Mayor Taylor is correct in that the educational end is done by the school board. Unless somebody decides to call a workshop, he said he would meet with the Commission individually.

Mayor Kelley reiterated that the Commission wants to move on this matter quickly; however, the process must be in place because of the zoning not the school because futuristically if anyone else comes before the Planning Council they need to know the process otherwise every individual would be coming back. He directed the City Attorney to meet with the Commission while he is moving expeditiously to deal with it.

Vice Mayor Taylor reminded Attorney Geller about the resolution for an emergency plan. Secondly, in terms of the Board of Inquiry, she suggested that the attorney find out what the problem is and perhaps he and the City Manager can work it out.

Commissioner Johnson stated that she previously mentioned that she would like the City Attorney and City Manager to get together and provide a report in terms of the deferred compensation. In meeting with the City Manager, she was told there were three individuals that receive deferred compensation; however, she's since received information which a copy was provided to the Commission that eludes there are more individuals receiving deferred compensation and she would like to have this issue cleared up.

She continued by expressing her concern relating to the maintenance of State Road 9 and requested that the city follow up with FDOT to make sure SR9 was not just beautified for the Super Bowl but that the maintenance would continue on a regular basis.

She further stated that she had not received a report back on the Opa-locka Executive Airport in terms of the airplanes flying too low.

With regards to the Charter Board zoning issue, Commissioner Tydus asked, does that zoning issue have an impact on the city's Comprehensive Development Plan and vice versa?

Attorney Geller advised that everything impacts the Comprehensive Plan; therefore, to the extent that the city may not have the element dealing with educational facilities, if this is something the Commission wants to see in the city, then that would be something he would call to the attention of FIU. However, there are in the Comprehensive Plan that talks about public areas; therefore, it would not conflict with the Comprehensive Plan for the Commission to adopt a zoning provision to allow educational facilities in appropriately designated areas.

Commissioner Johnson directed the City Attorney to look at preparing a resolution to recognize individuals who have been with the city for many years. Additionally, she said the City Attorney and City Manager are suppose to be working on the resolution for placement of stepping stones in honor of deceased City of Opa-locka employees.

Mayor Kelley requested a monthly report from the City Attorney on the city's pending cases and the status of each.

18. CITY CLERK'S REPORT:

Clerk Irby reminded everyone of the importance of the Census 2010 and urged everyone to fill out the questionnaire and mail it back quickly.

She continued by thanking Kierra Ward and the Office of Community Services for being instrumental in going around to the Crime Watch meetings and getting the word out about the Census 2010. She said she would like OCS to assist those individuals who need assistance with completing the Census form.

She further announced that the training is scheduled to take place on April 12-16 and April 19-23 for those citizens who will be employed by the Census.

Mayor Kelley thanked the City Clerk and all those involved with the Census because as he stated from the beginning that the city was proactive.

During one of the commission meetings, Commissioner Johnson stated that one of the citizens brought up the issue for the recognition and appreciation of board members. She directed the City Attorney to bring back a resolution and the City Clerk if she could work on the board appreciation.

Clerk Irby said she would do the best she could but she would have to shut done to prepare for the upcoming election.

Commissioner Johnson said once the resolution comes back then she is sure the City Manager has more staff and she would need to get with him to make sure the board appreciation happens.

Manager Patterson announced that he along with Mayor Kelley would be traveling to Washington D.C. on Sunday, March 14, 2010 through March 17, 2010 and Mr. Octavian

Spanner would be in charge during his absence. He advised that this information would be provided to the Commission in writing.

19. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor thanked the Commission and former Mayor John Riley for their support in the Civil Rights Supper. Additionally, she thanked the City Manager and Octavian Spanner for relocating the fire victims and Mr. Arshad of the Building Department for his assistance with the rehabbed home.

Commissioner Johnson reported that she was asked to participate on May 11, 2010 in Miami-Dade County's Teen Court Summit which was as a result of the Youth Summit. In addition, she is working with the University of Miami pedeactric van to bring those services to City Hall. She said a company approached about books they have available for elementary school children.

She continued by saying that she'd been working diligently with North Dade Middle School and on Saturday, March 13, 2010 in the new location there would be a open house for parents and the community to get involved. She said she started a petition to make sure the students received a one week extension for the FCAT testing.

Since the drug policy ordinance has been adopted, she said she would like to be the first to take a drug test.

She further reported that she'd been working with NANA – Tools for Change with Leroy Jones to relocate businesses to the City of Opa-locka.

Commissioner Johnson suggested that those parents who have a child in the 2nd – 5th grade in need of mentoring or tutoring to call her because the Department of Education have allowed her to extend her services.

She invited the Commission to Nathan B. Young on March 19, 2010 from 6:00 p.m. – 8:00 p.m. for a Women's History Month Celebration.

Commissioner Tydus emphasized the importance and effectiveness of Citizen's Crime Watch of which last week she was a beneficiary. She reported on an recent incident that occurred in which the Neighborhood Watch paid off and she was very grateful of that.

In commemoration of Women's History Month, Commissioner Tydus announced that she would be hosting an event sponsored by the Pathway Home on Saturday, March 27, 2010. This would be a luncheon premiering a movie entitled MAAFA 21.

Mayor Kelley reminded the women especially the women employees of the Annual Women's History Month luncheon on Friday, March 26, 2010 at 11:30 a.m. He said he would speak with the City Manager to have all the men possible available to serve the ladies.

He reported on his travel to Tallahassee to press the city's case for funding although it's a tight year for funding but he did meet with the representatives and other individuals who are in leadership. The city must now wait to see what transpired and hopefully get some funding; but as he indicated to the City Manager regarding the trip, the city must expend the dollars they have in the pipeline. He reported on something he'd been doing for weeks which impacts the flooding in terms of challenges the city had in addition to meeting with South Florida Water Management District, he followed up to make sure they assist with the city's Flood Mitigation Plan.

He further stated that he meet with the Opa-locka CDC regarding their first time homebuyers program because they have funding and classes available for those citizens interested. Additionally, Commissioner Johnson is working with the City Attorney on a program to get some of the foreclosed properties in line for residents as well as working with the CDC to assist citizens with homeownership.

Mayor Kelley informed the Commission that he would like to have the CRA workshop at 6:30 p.m. on March 24, 2010 prior to the Regular Commission Meeting.

Commissioner Johnson presented Major Evelyn Barrett of the Opa-locka Police Department with the Unsung Hero Award for her dedication to the quality of life to the residents of the City of Opa-locka.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to adjourn the meeting at 9:42 p.m.

MAYOR

ATTEST:

CITY CLERK